

Court remanded the demurrer to allow plaintiff “to allege, if she truthfully can do so, a precise date that Liberty Mutual agreed to reconsider her claim that would render her complaint timely under the doctrine of equitable tolling.” (*Ashou, supra.* at 768.)

Defendants also argue that even if CAIC incorrectly denied the Claim, the applicable limitations period still applies. And, without an express agreement to reopen a claim, an insurer’s statement of willingness to reconsider a denial does not toll the statute of limitations. (see *Singh, supra.* at 63 Cal.App.4th 135, 144; *Tran v. Safeco Ins. Co. of America* 2025 WL 3305848 *3 [in the insurance context, the limitations period is generally not tolled for a second time during the period of reconsideration but, it may be tolled where an insurer expressly agreed to reopen the claim]; *Vitug v. AXA Equitable Life Ins. Co.* 2020 WL 6472673 *2 [same.]])

Here, Plaintiffs have **still** not established that Defendants *actually reopened* their claim. The letters from Defendants consistently reiterate that the coverage decision on the Claim remains unchanged and that the file remains closed. (FAC ¶¶ RJN, Exs. “B”, “E” – “I”.) Notably, the Court in *Tran* reasoned that once “the insured has already been denied the claim prior to the request for reconsideration, there are at least some grounds to sue the carrier.” (*Tran, supra.*) At the prior demurrer hearing, the Court gave Plaintiffs the opportunity to allege a precise date that CAIC *reopened* their Claim, if they could truthfully do so. Otherwise, the Claim is time-barred. Plaintiffs’ FAC fails to make this critical allegation. Thus, the demurrer is sustained, without leave to amend.

6.

CASE #	CASE NAME	HEARING NAME
CVRI2503348	SORIANO VS THE 0312 RAMONA APTS, L.P.	MOTION TO COMPEL: FURTHER ANSWERS/RESPONSES TO INTERROGATORIES SPECIAL INTERROGATORIES

Tentative Ruling: Grant. Reasonable Sanctions.

Under CCP §§ 2031.310(b)(2), 2030.300(b)(1), 2033.290(b)(1) a motion to compel further responses must be accompanied by a meet and confer declaration. The motion is accompanied by the declaration of Attorney Elisabeth Herrmann who sent meet and confer correspondence to opposing counsel. Attorney Hermann attempted to utilize the court’s IDC process and ultimately filed the instant motions to preserve Defendant’s rights. This satisfies the meet and confer requirements.

I. MTC Further Responses to Special Interrogatories – Esmeralda Bahena Franco

Defendant Pro Management Company XIV, Inc. moves to compel Plaintiff Esmeralda Bahena Franco to produce further substantive verified responses to Special Interrogatories, Nos. 9, 12, 15, 18, 21, 24, 27, and 30. Plaintiff responded to the discovery after responses were initially due. Failing to respond within the time limit waives most objections to interrogatories, including claims of privilege and work product

protection. (CCP §2030.290(a); see *Leach v. Sup. Ct. (Markum)* (1980) 111 Cal.App.3d 902, 905-906.)

The interrogatories at issue asked Plaintiff to identify all documents supporting her contentions concerning the habitability of the apartment, particularly with respect to the water heater, bathroom lighting, ventilation, air conditioning, moisture buildup, and trash accumulation. Defendant also asked Plaintiff to identify all documents supporting her contention she was harassed and discriminated against.

Defendant argues Plaintiff failed to provide clear, code-compliant responses to the discovery. Plaintiff responded as follows: “Responding Party cannot produce the requested documents because the documents in question have never been, or are no longer in the possession, custody, or control of the Responding Party.” Defendant argues this response does not identify the responsive, which makes it unresponsive and not code-compliant. In Opposition, Plaintiff argues this response is sufficient and supported by the Code.

A response to an interrogatory stating an “inability to respond” is legally insufficient. If the responding party lacks personal knowledge sufficient to respond, the party may so state, but only after making a reasonable and good faith effort to obtain the information by inquiry to other persons or organizations. (See *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 406.) The responding party must make a reasonable effort to obtain whatever information is sought and if it is unable to do so, the responding party must specify why the information is unavailable and what efforts the responding party made to obtain it. (See *Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771, 782.) However, there is no duty to provide information that is equally available to the propounding party. (CCP §2030.220(c); see *Bunnell v. Sup.Ct. (California Life Ins. Co.)* (1967) 254 Cal.App.2d 720, 723-724.)

Defendant correctly argues that the interrogatories ask Plaintiff to identify documents that support her positions. Defendant did not ask Plaintiff to produce those documents. Accordingly, Plaintiff’s response that she cannot produce the requested documents is simply not responsive. Defendant asks Plaintiff to identify any responsive documents. Plaintiff has not done so. Plaintiff must provide a response that answers the actual interrogatory at issue. Plaintiff can say no document exists or, if a document does exist, Plaintiff can provide a description of the document and explanation of whether it is still in Plaintiff’s possession, custody, or control.

Grant the motion and order Plaintiff to provide supplemental further responses to the challenged interrogatories.

II. Sanctions

If a motion to compel is granted and the moving party properly asks for monetary sanctions, the court “shall” order the party to whom the discovery was directed to pay the propounding party’s reasonable expenses, including attorney fees, in enforcing discovery “unless it finds that the one subject to the sanction acted with substantial

justification or that other circumstances make the imposition of the sanction unjust.” (CCP § 2023.030(a).)

Defendant was successful on this motion. There is no apparent justification for Plaintiff’s failure to respond to discovery completely and with more thoughtful and coherent responses. Sanctions are appropriate.

Attorney Herrmann states she spent at least six (6) hours drafting the motion, 0.5 hours meeting and conferring with Plaintiff’s counsel, and expects to spend 3.5 hours in responding to the Opposition and attending the hearing on the motion. At an hourly rate of \$260/hour, Attorney Herrmann asks for \$2,660 in sanctions for each motion. The requested amount is excessive given the overlap between the motions, as the discovery served to Plaintiff Juan Soriano is identical to that served on Plaintiff Esmeralda Bahena Franco and their responses were identical. Furthermore, anticipating 3.5 hours to reply to each Opposition and attend the hearing is excessive.

The motion is granted to compel Plaintiff Esmeralda Bahena Franco to produce further substantive verified responses to Special Interrogatories, Nos. 9, 12, 15, 18, 21, 24, 27, and 30.

Monetary sanctions are awarded against Plaintiff and in favor of Defendant in the amount of \$1,300 per motion (\$260/hour for 5 hours)